

# HOUSE . . . . . No. 5389

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## The Commonwealth of Massachusetts

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PRESENTED BY:

***David K. Muradian, Jr. and Ryan C. Fattman***

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the continued employment of Michael Marchand, the fire chief in the town of Upton.

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PETITION OF:

| NAME:                         | DISTRICT/ADDRESS:            | DATE ADDED:      |
|-------------------------------|------------------------------|------------------|
| <i>David K. Muradian, Jr.</i> | <i>9th Worcester</i>         | <i>4/9/2026</i>  |
| <i>Ryan C. Fattman</i>        | <i>Worcester and Hampden</i> | <i>4/30/2026</i> |

# HOUSE . . . . . No. 5389

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By Representative Muradian of Grafton and Senator Fattman, a joint petition (accompanied by bill, House, No. 5389) of David K. Muradian, Jr. (by vote of the town) that the town of Upton be authorized to continue the employment of Michael Marchand, the fire chief in said town, notwithstanding the maximum age requirement. Public Service. [Local Approval Received.]

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act authorizing the continued employment of Michael Marchand, the fire chief in the town of Upton.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Notwithstanding any general or special law to the contrary, Michael  
2   Marchand, the chief of the fire department of the town of Upton, may continue to serve in such  
3   position until he reaches the age of 70, the date of his retirement or the date he is relieved of his  
4   duties by the select board or town manager, at their discretion, whichever occurs first; provided,  
5   however, that he is mentally and physically capable of performing the duties of his office. The  
6   select board or town manager may, at the town's expense, require that Michael Marchand be  
7   examined annually by a physician designated by the select board or town manager to determine  
8   his physical and mental capability to perform the duties of his office.

9           SECTION 2. No further deductions shall be made from the regular compensation of  
10   Michael Marchand pursuant to chapter 32 of the General Laws for any service performed  
11   subsequent to him reaching the age of 65. Upon his retirement for superannuation, Michael

12 Marchand shall receive a superannuation retirement allowance equal to the allowance that he  
13 would have been entitled to receive had he retired upon reaching age 65.

14 SECTION 3. This act shall take effect upon its passage.